

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

CERTIFIT, INC., *Complainant*

v.

EVERGREEN SHIPPING AGENCY (AMERICA) CORP.,
AS AGENT FOR EVERGREEN LINE, EVERGREEN GROUP
D/B/A EVERGREEN LINE, *Respondent*.

DOCKET NO. 23-03

Served: December 8, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON MOTION FOR CONFIDENTIAL TREATMENT

On November 30, 2023, Complainant's Brief, Proposed Findings of Fact, and Appendix in the above-captioned matter were due. On December 1, 2023, by email received at 12:05 a.m., CertiFit filed a Motion for Confidential Treatment ("Motion for Conf.") and its Brief. A separate email received at 12:09 a.m., also on December 1, 2023, contained a link to CertiFit's Appendix. On December 2, 2023, CertiFit emailed another version of their Brief, as well as a document titled, "Errata to CertiFit's, Inc's Brief" ("Errata"), although the filing included substantial changes to what had been filed the morning before, as well as a separately captioned Proposed Findings of Fact ("CF PFF"). CertiFit's Errata was not filed as a motion for leave to file a revised brief or a motion for leave to file its proposed findings of fact.¹

Respondent Evergreen Shipping Agency (America) Corp., as Agent for Evergreen Line, Evergreen Group d/b/a Evergreen Line ("Evergreen") has not objected to the late filings or the modifications to the brief, although their opposition is not yet due. Given the short duration of the delay in filing, sua sponte, the late filed modified brief and proposed findings of fact will be accepted.

The Scheduling Order stated that "[e]ach party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214...." Rule 502.214(c) states in pertinent part:

¹ The Initial Order instructed the parties that requests "for action by the Commission or presiding officer must be made by motion, not by letter or email request or as part of a joint status report. *Each page of the motion should be sequentially numbered.*" Initial Order at 4 (emphasis added). There are no numbers on the 6-page Errata. Future filings may be rejected if the pages are not numbered.

(c) Unless ordered by the presiding office, opening or initial briefs must contain the following matters *in separately captioned sections*:

- (1) Introductory section describing the nature and background of the case;
- (2) Proposed findings of fact in serially numbered paragraphs with reference to exhibit numbers and pages of the transcript;
- (3) Argument based upon principles of law with appropriate citations of the authorities relied upon; and
- (4) Conclusions.

(d) All briefs must contain a subject index or table of contents with page references and a list of authorities cited.

46 C.F.R. § 502.214 (emphasis added). Despite the instructions in the Scheduling Order and references to § 502.214, CertiFit incorporated the sequentially enumerated proposed findings of fact into its brief and also separately submitted proposed findings of fact. Only the separate document should have been submitted as the repetition of each enumerated fact in the brief could lead to confusion as to what document Evergreen must respond. Evergreen need only respond to the separate proposed findings of fact and should do so in a separate document.

In addition to the late filings and modifications without leave to do so, CertiFit submitted a Motion for Confidential Treatment that seeks to designate all of the exhibits—over 1000 pages—as confidential, asserting that all of the information contained in the exhibits warrants protections because it contains “commercially sensitive information related to CertiFit’s suppliers, amounts of auto parts transported, and frequency of shipments;” “commercially sensitive rates and terms;” destination of shipments, and amounts paid by CertiFit;” and “number of containers shipped, frequency of shipments, and amounts paid.” Motion for Conf. at 2-3. Other than identifying the documents as falling within these broad terms, CertiFit does not provide any support for its claim that every portion of every document “is a trade secret or confidential research, development, or commercial information” as set forth in 46 C.F.R. § 502.141(j)(1). Initial Order at 5. Incongruously, the motion also states that CertiFit’s “brief and proposed findings of fact are not being submitted for confidential treatment.” Motion for Conf. at 2. In the revised brief, which cites to the exhibits in the appendix, CertiFit quotes from email exchanges and letters (including but not limited to CF PFF 12, 16-26, 32-38, 40, 47-51, 59-62); references amounts paid for ocean freight (CF PFF 76); the types of containers used and number agreed upon, port locations (*see, e.g.* CF PFF 29, 55-57); and identifies other carriers with whom it had service contracts or with which it arranged alternate transportation, including freight rates (*See, e.g.*, CF PFF 79, 81).

The Initial Order described the use of confidential material in this proceeding and explained that the “burden is on the party seeking to protect the information to show good cause for its protection.” Initial Order at 5. CertiFit has not sought confidential treatment of its brief or proposed findings of fact which disclose and quote from exhibits it simultaneously alleges are confidential. Trying to dissect what portions of the exhibits have been disclosed in the Complaint, the Brief, and the Proposed Findings of Fact could result in unintended disclosure of confidential material, or to confusion by the public. Since the burden is on the party seeking protection to show good cause to do so, CertiFit should properly narrow the material in the

appendix for which is seeks a confidential designation. Based on the inconsistencies between the protection sought for the entirety of all exhibits and the use of material from those same exhibits in the publicly filed Brief and Proposed Findings of Fact, good cause has not been found, and CertiFit's Motion for Confidential Treatment is **DENIED WITHOUT PREJUDICE**.

By December 18, 2023, CertiFit may resubmit its confidentiality motion and must file both confidential and public versions of the Revised Appendix that correctly designates only those portions of its exhibits that are confidential consistent with the below. The confidential version should indicate what portions are confidential, either on each page or at a minimum in the table of contents.

The Initial Order addresses confidentiality, including:

Exhibits – Confidential information in exhibits should be marked as described above. If marking within the text is not feasible, the motion seeking confidential treatment must indicate why the material could not be so marked. If justified, individual pages may be replaced in the public version with a page indicating that confidential material was excluded. *Entire exhibits should not be excluded, only those pages containing confidential material.*

Initial Order at 5-6 (emphasis added). CertiFit may not change any material submitted in the corrected Appendix, other than changing the title to "Public/Confidential Corrected Appendix." The material included (or redacted) in the pages of the public corrected appendix should be the same as the confidential version so that a citation in the record applies the same way to both versions. The pages should also match the version of the appendix currently in the record.

For the reasons above, it is hereby **ORDERED** that CertiFit file a revised motion for confidential treatment, Corrected Confidential Appendix, and Public Appendix by December 18, 2023. No changes will be permitted to the exhibits or the bates numbers other than redaction consistent with the instructions on marking confidential material in the Initial Order and adding "Public Version" to the cover of the appendix. The redactions must not include quotations, numbers, rates, or other information already disclosed in the Brief and Proposed Findings of Fact.



Linda S. Harris Crovella
Administrative Law Judge